LIVINGSTONE HUDSON KUNDAYI

v

THE STATE

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA & ZISENGWE JJ
MASVINGO 15 July 2026 & 31 August 2026

Criminal appeal

K. T. Mukangamwi, for the appellant
B. E. Mathose, for the respondent

DUBE-BANDA J

[1] This is an appeal against both conviction and sentence. The appellant appeared before the magistrates court "court *a quo*" sitting at Zvishavane charged with the crime of negligent driving in terms of s 52(2) of the Road Traffic Act [*Chapter 13:11*]. It was alleged that on 2 September 2024, at an unnamed road in Mandava, Zvishavane, the appellant negligently drove an Isuzu KB 200 AFN 0460 at an excessive speed and failed to keep the vehicle under control and hit a pedestrian from behind who was walking along the same road.

[2] The appellant pleaded not guilty and after a contested trial, he was convicted and sentenced to pay a fine of US$250 or its equivalent in local currency, and in default of payment, to serve 4 months imprisonment. In addition, his driver's licence was endorsed to record the conviction.

[3] After hearing submissions, in an *ex-tempore* judgment, we dismissed the appeal in its entirety. In a letter to the Registrar, the appellant has requested written reasons for the dismissal of his appeal. These are the reasons.

The factual background.

[4] This case will be better understood from the following background. According to the State outline, on 2 September 2024, at around 1300 hours, the appellant was driving a motor vehicle, an Isuzu KG300 AFN0460 with two passengers on board. He was driving along an unnamed road in Mandava. Whilst opposite Ruswa Complex, the appellant's vehicle knocked down the complainant, who was walking on the left side of the road. As a result of the impact, the complainant fell, and she suffered a swollen right foot. She was referred to Zvishavane District Hospital for treatment. The particulars of negligence were stated as the following; as failure to keep the vehicle under proper control and travelling at an excessive speed in the circumstances.

[5] The appellant, who was without legal representation, filed a written defence outline. In his defence outline, he contended that he did not fail to keep his vehicle under control, because he was driving at a safe speed below 20km/h. He further denied traveling at an excessive speed, stating that it was impossible to do so due to human traffic and traffic of motor vehicles which were present along that road on the day. He stated that had he lost control of the motor vehicle because of excessive speed and had his vehicle knocked down the complainant from behind, the vehicle could have run over her, causing severe injuries. Because the braking distance could not have been less than twenty meters. He contended that the injuries are inconsistent with the alleged circumstances of the accident.

[6] He contended further that if indeed he was travelling at an excessive speed and had lost control of his motor vehicle, it would have been impossible for the vehicle to hit the complainant from behind without hitting a stationary Fun Cargo motor vehicle which was parked by the roadside, in the direction he was travelling. He expressed the view that the complainant was a negligent pedestrian who was walking on the wrong side of the road and slipped on her own in an uneven area of the road which was behind the stationary Fun Cargo motor vehicle.

[7] He objected to the production of the medical affidavit on the basis that the stamp did not indicate the basis on which the person was a commissioner of oaths. He stated that any police officer below the rank of Assistant Inspector could have, contrary to the requirements of the law, purported to commission the medical affidavit. He contended that the affidavit was inadmissible. He sought that he be found not guilty and acquitted.

Proceedings in the court *a quo*

[8] In support of the State case, the State presented evidence from two witnesses. The evidence of the complainant was that on 2 September 2024 she was walking with a child, who was being held by hand to her left. As she was walking, a vehicle, not speeding, driven by the appellant, hit her from behind, causing her to fall. Her right foot was run over by one of the motor vehicle's wheels, and the appellant stopped the motor vehicle. A female passenger in the appellant's vehicle assisted her to stand. The appellant then carried her into his vehicle and took her to Zvishavane Hospital. At the hospital, she did not get medical assistance because there were a lot of people who were seeking treatment. The appellant gave her his phone number. He transported her in his vehicle to her home.

[9] At home, her neighbors advised and insisted that she must seek treatment. The appellant drove her to the local police station. In the company of a police officer, they went to the scene of the accident. After the inspection of the scene of the accident, the appellant was no longer talking to her. She was then taken to the hospital by her husband's younger brother. Following the results of an X-ray examination, the attending doctor noted that she had suffered an injury, and a cast was put on her foot. Her evidence was that her foot was still painful and she could not wear closed shoes for a long time as such leads to the foot swelling.

[10] When informed that the appellant was contending that there was no way his vehicle could have hit her, without hitting the Fan Cargo vehicle, her answer was that every pedestrian was passing the Fan Cargo, which was parked off the road. She disputed that she was negligent, which caused her to slip and fall on an uneven road and injure her foot. She insisted that the vehicle driven by the appellant hit her on her back and a wheel ran over her right foot. She stated that she had no reason to lie against the appellant because she knew him only in connection with this case. Despite the appellant's protestation, the trial court received the medical report compiled by the doctor as an exhibit.

[11] During cross-examination she testified that it was not her first time using that road; she uses it when going to the shops. She agreed that it was a busy road, used by people getting into the complex and going to the marketplace. And that the road is narrow. She disputed that she fell into a trench, stating that there was no trench at that place. She insisted that the appellant drove her to the hospital and took her home because he had injured her. In fact, the complainant explained that the two agreed that since the hospital was busy, and she was not feeling much pain, he could take her home, and that should the foot become more painful, or should she develop complications, she should contact him for assistance. And for this purpose, the two exchanged phone numbers.

[12] The second prosecution witness was the investigating officer. He received a report of a road accident at Mandava. The appellant and the complainant arrived at the police station, and the two did not agree on what happened at the scene. He then took them to the scene of the accident. At the scene, he drew a sketch plan according to what he was informed by the parties. In the sketch plan, he marked the point of traffic flow; he also marked the possible point of impact and the final resting point of the complainant. The parties saw the plan and agreed to what he had drawn. The sketch plan was received in evidence as an exhibit.

[13] The investigating officer testified that the road was tarred. There were no potholes. The appellant and the complainant were both moving towards the west. The appellant informed the officer that there was a pedestrian walking and there was a vehicle parked adjacent. The officer stated that the appellant caused the accident because his vehicle hit the complainant on the right side of the leg. He insisted that it was the appellant's vehicle that hit the complainant from behind. He further disputed that the complainant was negligent, disputed that she slipped on her own and fell where there was Fun Cargo vehicle. His opinion was that the appellant was driving at a speed exceeding 20k/h. Under cross-examination, the officer insisted that the appellant was driving at an excessive speed; otherwise, he could have seen the complainant and avoided the accident. And that from the investigations, it was the vehicle driven by the appellant that knocked down the complainant.

[14] In his defence case, the appellant adhered to his defence outline stated above. Under cross-examination, he denied that on 2 September 2024, he was driving along an unnamed road in Mandava and the vehicle he was driving knocked down the complainant. He disputed that he was driving at an excessive speed. He confirmed that he took the complainant to hospital and did not ask what happened to her. He also took her home. He stated that he took her to hospital because he thought it was the child who needed treatment. He disputed that he exchanged phone numbers with the complainant.

[15] The appellant called the evidence of a defence witness, his nephew. This witness testified that he was a passenger in the vehicle driven by the appellant, and he was standing in the loading box. He saw a woman who fell to the ground. An elderly woman passenger in the appellant's vehicle disembarked and took the child who was carried by the woman who had fallen to the ground. The woman who had fallen and the child got into the vehicle. He disputed that it was the vehicle driven by the appellant that knocked down the complainant. He said the complainant fell into a gorge. Under cross-examination, he insisted that it was not the vehicle driven by the appellant that knocked down the complainant. He stated that where the complainant fell, there was a pothole. The vehicle stopped 1.5 meters from where she had fallen.

[16] In its judgment, the court *a quo* found it not disputed that the complainant was hit by a vehicle on 2 September 2024. And that the complainant suffered injuries, which led the appellant to drive her to hospital. After failing to get treatment at the hospital, the appellant drove her to her home. Again, the appellant and the complainant went to the local police station.

The two exchanged phone numbers. The following day, the complainant was examined by a doctor, who noted a tangal bone fracture and right foot swelling.

[17] The court *a quo* found, on the acceptance of the evidence of the complainant and the investigating officer, that at the scene of the accident there were no potholes or gorges. And that it was the vehicle driven by the appellant that knocked down the complainant, resulting in her suffering the injuries observed by the doctor. The court *a quo* found proved that the appellant failed to keep the vehicle under control and was travelling at an excessive speed in the circumstances. It concluded that the State had proved its case beyond a reasonable doubt as required by the law. The appellant was found guilty as charged and sentenced as stated above.

Grounds of appeal

[18] Aggrieved by the conviction and sentence, the appellant noted this appeal, which is predicated on the following grounds:

Ad conviction

i. The court *a quo* misdirected itself and erred at law by ignoring the objection raised by the appellant that the alleged commissioner of oaths stamp used did not clearly indicate the status of the commissioner of oaths, as it did not identify the person before whom the medical affidavit was deposed and capacity by which the commissioner of oaths acts.

ii. The court *erred* in not adhering to the rules of procedure which entail where there is an objection to the findings made by the deponent of a medical affidavit, it becomes incumbent upon the State to call the author of the document.

iii. The court *a quo* erred in convicting on unsubstantiated evidence that appellant was driving at an excessive speed in contradiction to the evidence adduced by the complainant.

iv. The court *a quo* erred at law in acting on a cursory approach by not considering the defence of the appellant in its judgment.

Ad sentence

v. The court *a quo* erred in placing emphasis on the seriousness of the offence in sentencing by ignoring other factors for sentencing.

vi. The court erred in ignoring contributory negligence on the part of the complainant upon sentencing the appellant.

vii. The court misdirected itself in failing to consider that incarceration of the appellant a day before sentence was a sufficient punishment it ought to have

considered during sentencing.

Wherefore the appellant prays for the following:

a) The appeal be and is hereby allowed.

b) The judgment of the court *a quo* is set aside and substituted with the following:

(i) The appeal against conviction be and is hereby allowed.

(ii) The judgment of the trial court be and is hereby set aside and substituted with the following:

"The accused be and is hereby acquitted"

c) Alternatively, if the conviction is found to be proper, the sentence be and is hereby set aside and substituted as follows:

(i) The sentence may be reduced to a fine of USD60.

The submissions of the parties and analysis

[19] At the commencement of the hearing, Mr *Mukanganwi,* counsel for the appellant, informed the court that the appellant was abandoning ground number one in the notice of appeal. The appellant persisted with grounds two, three and four in the notice of appeal. And further persisted with the appeal against sentence. We now turn to consider the grounds of appeal.

[20] Ground one attacks the failure to call the oral evidence of the deponent to the medical affidavit. At the trial, the appellant stated that he had issues with the injuries the complainant suffered. He accepted that the complainant was examined by a doctor but contended that the injuries she suffered were not the ones recorded in the medical affidavit. We accept that in terms of s 278 (12) of the Criminal Procedure and Evidence Act [*Chapter 9:07*] a court in which an affidavit is produced in evidence may, of its own motion or at the request of the prosecutor or of the accused, cause the person who made the affidavit to give oral evidence in the proceedings in question in relation to any statement contained in the affidavit.

[21] We accept that, as a general rule, where the contents of the medical report are challenged, the doctor must be called to amplify and explain the contents of his report and generally assist the court in an assessment of the nature and seriousness of the injuries and the inferences to be drawn from the presence or absence, as the case may be, of injuries. Prosecutors should regard it as the rule, rather than the exception, that where the contents of the medical report are challenged, the doctor's evidence becomes necessary. And the trial court should always have in mind that it is its right, and indeed duty, in any case where it believes that *viva voce* evidence may be of assistance, to

require the attendance of the doctor.

[22] In *casu*, the appellant and the prosecutor did not request the calling of the medical doctor who examined the complainant. The question that arises is whether the court had a duty to call the oral evidence of the doctor? In deciding whether to call the evidence of the doctor, the court must, amongst other considerations, carefully compare the evidence of the complainant together with the other evidence before it, and the contents of the medical report. In this case, the evidence of the complainant is that following the results of an X-ray examination, the attending doctor noted that she had suffered an injury, and a cast was put on her foot. Her foot was swelling. This evidence shows that she suffered a bone fracture and foot swelling. In other words, the evidence of the complainant corroborates the contents of the medical report. The doctors would not have put a cast on her foot if there was no fracture. In addition, in his defence outline, the appellant accepted that the complainant suffered the injuries stated and argued that such injuries were inconsistent with the circumstances of the road accident. In essence, he was accepting that the complainant suffered the injuries, but he was not the cause of those injuries. In his cross-examination of the complainant, he did not challenge the existence and the extent of the injuries; his argument was that the complainant fell into a trench and sustained the injuries she suffered. Even when he was cross-examined, he did not dispute the existence and the extent of the injuries suffered by the complainant. In the circumstances, the failure to call the oral evidence of the doctor is not fatal to the State case.

[23] In any event, even if one were to conclude that the oral evidence of the doctor should have been called, on the facts of this case, this would still not be a basis to set aside the appellant's conviction on this ground of appeal. This is so because s 38(2) of the High Court [*Chapter 7:06*] states that:

> "Notwithstanding that the High Court is of the opinion that any point raised might be decided in favour of the appellant, no conviction or sentence shall be set aside or altered unless the High Court considers that a substantial miscarriage of justice has actually occurred."

[24] A substantial miscarriage of justice generally occurs when an accused is tried, convicted and punished for a crime he or she did not commit. In other words, when there is no evidence to support a finding of guilt. In this case, as stated above, the evidence of the complainant corroborates the contents of the medical report. In the circumstances, this ground of appeal has no merit.

[25] Ground two in the notice of appeal attacks the factual finding of the court *a quo*. It is contended that the court *a quo* erred in convicting the appellant on unsubstantiated evidence that he was

driving at an excessive speed in contradiction to the evidence adduced by the complainant. It is trite that the default position is that the factual findings of the trial court are presumed to be correct, unless they are grossly unreasonable and cannot be supported by the evidence on record. This position was articulated in *Hama* v *National Railways of Zimbabwe* 1996 (1) ZLR 664 (S), wherein the court held that:

> "The general rule of the law, as regards irrationality, is that an appellate court will not interfere with a decision of a trial court based purely on a finding of fact unless it is satisfied that, having regard to the evidence placed before the trial court, the finding complained of is so outrageous in its defiance of logic or of accepted moral standards that no sensible person who had applied his mind to the question to be decided could have arrived at such a conclusion."

[26] In *S* v *Mupande and 2 Others* (58 of 2022) [2019] ZWSC 58 (20 November 2019) the court said it is not enough to merely aver that another court would have arrived at a different conclusion on the same set of facts. One must go beyond that to prove that the court in making its decision had taken leave of its senses and therefore the finding is irrational.

[27] It is correct that the complainant stated that the appellant's vehicle was moving at a slow speed. She did not say the appellant was not driving at an excessive speed in the circumstances. In fact, an evaluation of whether he was driving at an excessive speed in the circumstances is not in the lane of the complainant. It is for the trial court, after considering the speed, the quality of the road; the weather; and the volume of traffic on the road, both in terms of vehicles and pedestrians, to make such a finding. This list is not exhaustive. In *casu*, the appellant was driving on a busy road, in proximity to a shopping place and the market. Further, there was another vehicle, a Fun Cargo parked on the side of the road. In such a case, even 20 km per hour could be an excessive speed in the circumstances. The finding by the court *a quo* that the appellant failed to keep his vehicle under proper control and that he was traveling at an excessive speed in the circumstances cannot be faulted. In any event, the appellant does not allege that this factual finding is grossly unreasonable or irrational and cannot be supported by the evidence on record. This court cannot merely vacate the factual findings unless it is shown that they are grossly unreasonable or irrational and cannot be supported by the evidence on record. In the circumstances, this ground of appeal has no merit.

[28] In ground four of the notice of appeal, it is contended that the court *a quo* erred at law in acting on a cursory approach by not considering the defence of the appellant in its judgment. The nub of the appellant's defence was that the complainant slipped and fell on her own, on an even road behind the stationary Fun Cargo vehicle. A closer examination of the evidence on record shows that the appellant's defence was not reasonable possible true. The sketch plan shows the possible

point of impact; it is out of the road. That is the impact between the vehicle driven by the appellant and the complainant. He agreed to this sketch plan, thus admitting that it was the vehicle he was driving that knocked down the complainant. According to the point of impact, he strayed out of the road and hit the complainant from the back. This shows that he failed to keep his vehicle under proper control and that he was traveling at an excessive speed in the circumstances.

[29] The appellant's argument that he stopped the vehicle to assist the child whom he thought was injured is outside the realm of belief. The child had no injuries. The child did not require medical treatment. The person who had injuries was the complainant. He drove the complainant to the hospital. He drove her again to her home and to the local police station. He exchanged phone numbers with the complainant, informing her that she must contact him should she develop complications arising from the injury. The two were strangers to each other. He does not say he was merely a good Samaritan. The only logical explanation for his conduct is that he knocked down the complainant with his vehicle. The court *a quo* considered these facts and arrived at an inescapable conclusion that it was the appellant's vehicle that knocked down the complainant. In the circumstances, this ground of appeal has no merit. The conviction is unassailable.

Sentence

[30] It is trite law that sentencing falls and resides within the discretion of a trial court. The appeal court's right to interfere with sentences imposed by the trial court is limited to instances where the court *a quo* materially misdirected itself or committed a serious irregularity in evaluating all the relevant factors regarding sentence. And in cases where the sentence is disturbingly inappropriate. See: *S* v *Ramushu & Ors* S 25-93; *S* v *Munakamwe* S 121-23; *Muhomba* v *The State* S 57-13. It is not enough for the appellant to argue that the sentence is severe because that alone is not a misdirection, and the appellant court would not interfere with a sentence merely because it would have come up with a different sentence. See: *S* v *Nhumwa* S 40-88; *Mukutu & Anor* v *The State* S 05-26.

[31] *In casu*, the trial court carefully considered the offence, the statutory framework, and the appellant's personal circumstances. A perusal of the record shows that the trial court correctly considered all the relevant factors and appropriately found mitigating circumstances outweighing aggravating factors. And opted for a noncustodial sentence. The submission that the trial court misdirected itself in failing to consider that incarceration of the appellant a day before sentence was a sufficient punishment has no merit. It is not supported by precedent. The one night in custody pending sentence did not, standing alone, qualify the appellant to a sentence less than the one imposed by the trial court. The trial court exercised its sentencing discretion in terms of the

requirements of the law. Accordingly, the appeal against sentence has no merit.

Conclusion

[32] A reading of the evidence on record shows that the court *a quo* cannot be faulted for accepting the version of the State and rejecting the appellant's defence. The version of the State is detailed, internally coherent on the core sequence, and externally corroborated. The same cannot be said of the appellant and his witness. Their evidence, individually and cumulatively, does not accord with the probabilities of the case. In fact, it is beyond a reasonable doubt false. It is for these reasons that the appeal against conviction has no merit and must fail.

[33] In respect of sentence, this court finds no misdirection or any form of irregularity committed by the trial court, necessitating this court to interfere with the sentence imposed on the appellant. In the result, the court *a quo* cannot be faulted for ordering the sentence that it imposed. In the circumstances, the appeal against the sentence has no merit and cannot succeed.

[34] It is for the above reasons that we dismissed this appeal in its entirety.

DUBE-BANDA J……

ZISENGWE J… ..... I agree.

Kingstone Corporate Attorneys, appellant's legal practitioners.
National Prosecuting Authority, respondent's legal practitioners.